

GIFFIN v VASCONCELLOS

23CV46905

**MITCHELL L. ABDALLAH'S
MOTION TO BE RELIEVED AS COUNSEL**

Attorney Mitchell Abdallah moves to be relieved as counsel of record for defendant Vasconcellos. Counsel's declaration meets the statutory requirements.

Accordingly, Counsel's motion to be relieved is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. Counsel to submit an MC-053 Order.

**WALKER, et al v JODY A. TAYLOR and SHARON L. CLARK,
Trustees of the Double Springs Ranch Trust, et al**

24CV47475

**DEFENDANT’S MOTION FOR PREFERENTIAL TRIAL
SETTING PURSUANT TO CCP 36(a)**

This civil action stems from dispute concerning an easement and questions over title to a certain stretch of property. Randy Walker (“Walker”) and Jessica Albonico (“Albonico”) (collectively, “Plaintiffs”) filed this action to determine the parties’ respective rights and duties as well as to quiet title. Defendants are Jody A. Taylor (“Taylor”) and Sharon L. Clark (“Clark”) Trustees of the Double Springs Ranch Trust; Carol A. Gates, Trustee of the Carol A. Gates Family Trust (“Gates”); Perry Williard; Cheryl Willard Alden R. Houbein and Virginia A Houbein, Trustees of the Houbein Revocable Trust DTD March 21, 1996; John M. Taylor, Katherine L. Taylor, and Mark Van Lobel Sels and Mary Van Lobel Sels (collectively “Van Lobel Sels”).

The complaint was filed on July 3, 2024. A cross-complaint was filed by Taylor and Clark as Trustees, Gate as Trustee, and the Van Lobel Sels on April 29, 2025.

On July 11, 2025, the Court granted the Cross-Complainants’ request for preliminary injunction. Plaintiffs were thereby prohibited from entering, traversing, or performing any acts of use upon the Cross-Complaints’ property, and any real property described in the Complaint, in order to prevent the creation of prescriptive easement.

Now before the Court is Defendant/Cross-Complainant Taylor’s motion for trial preference.

I. Legal Standard

California Code of Civil Procedure § 36(a) provides:

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: